

Smt.Dr Rohini W/O Shivagouda Patil vs Shri Dr Shivagouda S/O Malagouda Patil on 1 June, 2017

Author: B.V.Nagarathna

Bench: B.V.Nagarathna

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IN THE HIGH COURT OF KARNATAKA
KALABURAGI BENCH

DATED THIS THE 01ST DAY OF JUNE 2017

BEFORE

THE HON'BLE MRS. JUSTICE B.V.NAGARATHNA

CIVIL PETITION NO.200043/2016

BETWEEN:

Smt. Dr Rohini
W/o Shivagouda Patil,
Age 28 years, Occ. Nil,
R/o C/o Bhagwanreddy B
Pulkeshi Nagar,
Honawad Building,
Near Jagajoyti
Basaweshwar School,
Vijayapur.

...Petitioner

(By Sri Shivanand Patil, Advocate)

AND:

Shri Dr Shivagouda S/o Malagouda Patil,
Age 37 years,
Occ. Medical Practitioner & Professor
R/o Sankratti, Tq. Athani, Dist. Belagavi
Presently at Vaibhav Niwas,
112/2, Sect No.II,
Shivabasav Nagar, Belagavi - 587 103.

...Respondent

(By Sri Harshavardhan R Malipatil, Advocate)

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This Civil Petition is filed under Section 24 of CPC praying to order for the transfer M.C.No.377/2016 pending on the file of Judge, Family Court, Belagavi to the court of Judge, Family Court, Vijayapur to try and dispose the same in accordance with law.

This Civil Petition coming on for admission this day, Court made the following:

ORDER

Though the Civil Petition is listed for admission, with the consent of learned counsel on both sides, it is heard finally.

2. The petitioner is the wife while the respondent is the husband as they were married on 15.06.2014. On account of certain differences, which arose between them, the petitioner has not been residing with the respondent at the marital home at Belagavi. The respondent/husband has filed a petition namely, M.C.No.377/2016 under Section 13(1) (ia) (ib) of Hindu Marriage Act, 1955 read with Section 7(I) (A) of the Family Courts Act, 1984 before the Family Court at Belagavi seeking dissolution of marriage. Having received notice from the Family Court at Belagavi, the respondent in that petition has preferred this Civil Petition under Section 24 of the Code of Civil Procedure, 1908, (CPC) seeking transfer of M.C.No.377/2016 pending on the file of Family Court at Belagavi to the Family Court at Vijayapur.

3. In response to the notice issued on this civil petition the respondent/husband has appeared and is represented by counsel.

4. I have heard learned counsel for petitioner and learned counsel for respondent and perused the material on record.

5. Petitioner's counsel submitted that she is now residing in her parents' house at Vijayapur. That M.C.No.377/2016 has been filed by the respondent/husband at Family Court at Belagavi which is about 250 kilometers away from Vijayapur. That it would not be impossible for the petitioner to travel to Belagavi on every date of hearing of the case and on account of the distance and the fact that she has no acquaintance in Belagavi and due to financial constraints. He therefore submitted that M.C.No.377/2016 may be transferred to the Family Court at Vijayapur.

6. Learned counsel for the respondent submitted that the petitioner has filed Civil Petition frivolously and that she is in a position to attend to the matter at Belagavi and that this petition is devoid of any merit.

7. Having heard the learned counsel for the parties and on perusal of the material on record it is noted from Annexure-A to the Civil petition that the respondent/husband has filed M.C.No.377/2016 before the Family Court at Belagavi which is about 250 kilometers away from

Vijayapur. The petitioner is residing with her parents at Vijaypur whereas the petition filed by the respondent seeking divorce is pending on the file of Family Court at Belagavi. I find considerable force in the submissions made by the learned counsel for the petitioner and strong reasons for transferring M.C.No.377/2016 pending on the file of Family Court at Belagavi to the Family Court at Vijayapur so as to enable the petitioner herein to effectively contest and participate in the said proceedings. Hence, this Civil Petition is allowed.

8. M.C.No.377/2016 pending on the file of Family Court at Belagavi is transferred to the Family Court at Vijayapur. The Family Court at Belagavi is directed to forthwith send the records to the Family Court at Vijayapur.

9. As the parties are represented by their respective counsel, they are directed to appear before the Family Court at Vijayapur on 27.06.2017 without expecting any separate notice from that court. No costs.

10. Registry of this court is also directed to communicate this order to the Family Court at Belagavi forthwith for the purpose of transmission of records.

Sd/-

JUDGE sn